



Frequently Asked Questions (FAQ) About Sexual Harassment at the Workplace

General Information



1. **What is the Judiciary's stance on sexual harassment?** The Judiciary maintains a zero-tolerance policy toward sexual harassment. It is considered a criminal offense and a violation of several laws, including the Sexual Offences Act and the Employment Act.



2. **Who does this policy apply to?** The policy and SOPs apply to all Judges, Judicial Officers, Judiciary staff, interns, pupils, consultants, and any person interacting with the Judiciary.



3. **What constitutes sexual harassment?** It includes any unwelcome sexual advance, request for sexual favors, or verbal or physical conduct of a sexual nature. It also covers behavior that causes offense or humiliation, interferes with work, or creates an intimidating or hostile work environment.

Reporting a Complaint

WHO CAN REPORT AN INCIDENT?

Victim



Bystander



Whistleblower



Supervisor



4. **Who can report an incident of sexual harassment?** Complaints can be filed by victims, third parties (bystanders or witnesses), whistleblowers, or supervisors who become aware of violations.
5. **How do I file a complaint?** Complaints can be made verbally or in writing using the prescribed sexual harassment complaint form.
You can report directly to EPU:
Walk-in: To the EPU offices situated at Kenya Re Towers, Upperhill, 9th Floor
Phone: **0118904049.**
Email: **epu@court.go.ke.**
Online Portal: **<https://epu.court.go.ke>.**
You can also report to your Supervisor, Head of Station, Ombudsperson, Director HRMD, Registrars, Designated contact officer, Chief Registrar, Presiding Judges, Deputy Chief Justice, or Chief Justice. Reports to these officers must be forwarded to EPU **within 48 hours.**
6. **Is there a time limit for reporting?** Yes, complaints should generally be filed within 6 months. This timeframe may only be extended with authorization from the Chief Justice.
7. **Can I report anonymously?** Yes, the procedures allow for anonymous complainants who may make allegations without revealing their identity.





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Protection and Support



11. **What measures are in place to ensure my safety?** The EPU can initiate immediate safety measures, including removal from harmful environments, security protection, temporary work reassignment, or non-contact orders.



NEED-TO-
KNOW

12. **Will my report be kept confidential?** Yes, confidentiality is ensured from the moment a complaint is received. Information is only shared on a strict "need-to-know" basis.



13. **Is there protection against retaliation?** Retaliation is strictly prohibited. The EPU is responsible for monitoring cases to prevent any form of victimization or intimidation against those who report.



14. **Is psychosocial support available?** Yes, the EPU can refer victims to counselors, psychologists, social workers, or crisis helplines based on the severity of the complaint.

Resolutions and Sanctions



15. **What are the potential consequences for a perpetrator?** Sanctions can include dismissal, stoppage or withholding of pay increments, and severe reprimands. Corrective measures like training or counselling may also be applied.



16. **Can a matter be resolved informally?** Informal resolution is an optional alternative if both parties consent and the Chief Justice approves. However, it is not available for crimes, serial offenders, or high-severity cases.



17. **What happens if a false accusation is made?** Knowingly making false accusations is a violation of policy and may lead to disciplinary action. However, failing to prove a claim is not considered a false accusation.



Social Transformation
through Access to Justice